Whether the parliamentary system should be continued or should be replaced by the presidential system has been a point of discussion and debate in our country since the 1970s. This matter was considered in detail by the Swaran Singh Committee appointed by the Congress government in 1975. The committee opined that the parliamentary system has been doing well and hence, there is no need to replace it by the presidential system.

DISTINCTION BETWEEN INDIAN AND BRITISH MODELS

The parliamentary system of government in India is largely based on the British parliamentary system. However, it never became a replica of the British system and differs in the following respects:

1. India has a republican system in place of the British monarchical system. In other words, the Head of the State in India (that is, President) is elected, while the Head of the State in Britain (that is, King or Queen) enjoys a hereditary position.

2. The British system is based on the doctrine of the sovereignty of Parliament, while the Parliament is not supreme in India and enjoys limited and restricted powers due to a written Constitution, federal system, judicial review and fundamental rights.

3. In Britain, the Prime Minister should be a member of the Lower House (House of Commons) of the Parliament. In India, the Prime Minister may be a member of any of the two Houses of Parliament.[7]

4. Usually, the members of Parliament alone are appointed as ministers in Britain. In India, a person who is not a member of Parliament can also be appointed as minister, but for a maximum period of six months.

5. Britain has a system of legal responsibility of the minister while India has no such system. Unlike in Britain, the ministers in India are not required to countersign the official acts of the Head of the State.

6. 'Shadow cabinet' is a unique institution of the British cabinet system. It is formed by the opposition party to balance the ruling cabinet and to prepare its members for future ministerial office. There is no such institution in India.

[1]The 42nd and 44th Amendment Acts of 1976 and 1978 respectively have made the ministerial advice binding on the president.

[2]*How Britain is Governed* is a popular book written by him.

[3]This theory was propounded by Montesquieu, a French political thinker, in his book *The Spirit of Laws* (1748) to promote individual liberty. He stated that concentration of powers in one person or a body of persons would result in despotism and negate individual liberty.

[4]K.T. Shah favoured the adoption of the presidential system.

[5]*Constituent Assembly Debates,* Volume VII, pp. 284–5.

[6]Constituent Assembly Debates, Volume VII, p. 32.